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INTRODUCTION

Terry Nardin

THIS BOOK IS CONCERNED with the reasons for making war, for fighting with restraint, or for repudiating war as an instrument of policy, as these issues are understood within six distinct and important ethical perspectives. Its premise is that there is more than one way of looking at the ethics of war and peace, and that to understand the topic is, in part, to understand these alternative views. A few words about how we have approached our task may help the reader to understand the substantive chapters that follow this introduction.

Though moralists usually argue about the rights and wrongs of conduct from within a given set of ethical ideas, our aim has been to move beyond the usual boundaries of moral argument. The first-order discourse that goes on inside a moral tradition seeks primarily to elicit the implications for conduct of a particular system of values. In contrast, the dialogue in which we are engaged here constitutes a second-order discourse, designed to clarify how recurrent questions of war/peace ethics are handled in different ethical systems.

One important set of questions concerns conceptions of peace and war, as these are understood within each perspective. What types of peace and war can be distinguished? How are they related? What attitudes toward peace and war are reflected in these conceptions? Is there a presumption against war, and if so, on what is it based? To what extent is it morally proper to adopt nonviolent, pacifist, or abolitionist attitudes?

Another set of questions concerns reasons for waging war. What grounds for war, if any, are recognized within each perspective? What criteria distinguish justifiable from unjustifiable wars? Do intentions matter? How important is one's internal motive or the spirit in which one acts? Are acts of war rendered unjust if done for the wrong motives? And because wars can occur within as well as between communities, how should we think about the ethics of civil war? Which situations, if any, warrant armed resistance or conscientious objection?

Finally, there are questions concerning the conduct of war, once the fighting has begun. What constraints apply to military conduct? Are these merely prudential constraints, or do they have moral force? How can respect for moral principles be reconciled with a concern for consequences? Can one ever be excused from observing constraints on the conduct of war? In particular, can these constraints be overridden in emergencies that

threaten to destroy a community? What does a commitment to peace require of those who must decide when and how to fight?

These are the questions that have guided our inquiry into the ethics of war and peace in the traditions of natural law and political realism, in Jewish and Islamic ethical discourse, and in the arguments of pacifist and feminist critics of these established ethical systems. Building on the answers we have found in each of these perspectives, we have sought through dialogue and comparative analysis to discover areas of divergence and convergence among them. Where do they differ? Can these differences be reconciled? What areas of agreement can we identify? What conclusions, if any, can we draw regarding the prospects for a common ethic of war and peace, despite persisting disagreement?

This comparative approach to the ethics of war and peace is not without precedent. Standing behind it are long traditions of scholarship concerned with the comparative study of religion, law, and morals. Comparative inquiry is relatively rare in the study of international ethics, but it is implicit in efforts to distinguish alternative ethical positions. The debate over the place of ethics in international affairs, for example, was for many years defined in terms of an opposition between “idealism” and “realism.” This distinction, though often pronounced to be simplistic and outdated, has a way of reasserting itself—in fact, it does so in this book, where we take the debate between natural law and political realism as our point of departure—because it reflects the basic tension between deontological and consequentialist ethical concepts, a tension that is starkly evident in the ethics of war and peace. More recently, students of international ethics have emphasized another opposition, one that distinguishes between “cosmopolitan” and “communitarian” viewpoints.¹ This distinction, too, is at work in the present volume, for its dialogue takes place between those whose judgments are rooted in the commitments of a particular faith-centered community and those who ground their judgments on principles regarded as universal because they rest on tradition-independent ideas of reason and human nature. In my judgment, both dimensions—one defined by the clash between deontology and consequentialism, the other by the opposition between universalism and particularism—are required to make sense of differences both within and between the major ethical perspectives.

As an alternative to multiplying dichotomies, one might attempt to organize the richness of ethical worldviews in terms of three, five, or more categories. The effort to distinguish and compare different modes of thought provides the tripartite framework (realism, rationalism, and revolutionism) for Martin Wight’s recently published lectures on international relations, and the comparative and dialogic approach he cultivated has been carried on by Michael Donelan.² Wight’s goal was to articulate a typology that would systematically order the major alternatives. Others

have proceeded in a more eclectic manner, identifying viewpoints that have achieved a certain historical identity or philosophical coherence without claiming that the resulting collection is either systematic or comprehensive.³

Often the viewpoints identified for investigation are those that make sense in relation to a particular issue. A comparative approach based on this more pragmatic criterion can be found in studies undertaken by the Ethikon Institute on global resource distribution, transnational migration, and political change in Europe.⁴ Inquiry into actual, historical ethical traditions has also been important in several studies focusing specifically on the ethics of war and peace.⁵ In a period in which scholarship in international relations, as in other fields, is increasingly influenced by hermeneutic, historicist, and multiculturalist concerns, we can expect to see more research on international ethics that proceeds by comparing diverse ethical perspectives, and that is attentive to what may emerge from dialogic encounters between these perspectives.

The comparative study of international ethics raises some difficult methodological issues. To discuss these issues fully would distract attention from the substantive concerns of this book, but a few words should be said about the character of the enterprise we are inviting you, the reader, to join. On what grounds have we selected the viewpoints represented here? Why these particular perspectives? Are they comparable entities? These questions are most easily answered by discussing some of the difficulties inherent in the comparative study of ethical ideas.

One difficulty comes from the sheer diversity of viewpoints to be understood. A possible objection to the comparative approach we take in this book is that our concept of an ethical viewpoint is ill defined and that those we have identified are not comparable entities. Several of these perspectives are explicitly based on religious premises, but others are not. Although some display impressive coherence, others are marked by wrenching disagreement. Some are historical traditions, others philosophical constructs. And even if the perspectives are in some sense comparable, the discussions of them that we have assembled here differ both in aim and in style. Finally, the reader who is satisfied on all these points may still conclude that we have not chosen the right perspectives to study.

Despite the hazards of the enterprise, there is much to be learned from the comparison of different viewpoints, even when they rest on different assumptions and are expressed in different idioms. Noncomparability may be a problem in statistical studies, where one is trying to isolate relations between certain variables while holding others constant, but it is irrelevant to the comparison of ideas or practices: the fact that two viewpoints may be different in significant ways is a conclusion, not an obstacle to understanding. Thus, it cannot be an objection to the comparative study of ethical

viewpoints that some are religious and others secular. We have included both religious and secular perspectives in this study because ethical views are often linked with religious beliefs shared by a large number of people, and because these beliefs are a part of the ethical experience that moral and political philosophy must seek to comprehend. Nor is comparison barred by the fact that some viewpoints display substantial agreement on war and peace issues whereas others do not. The extent to which there is or is not agreement within a given viewpoint is something we want to discover and to understand.

A more radical objection to comparative ethics arises from the claim that we cannot understand viewpoints connected with ways of life different from our own. A version of this historicist argument has been made against those who criticize Christian pacifism from an external perspective. Moral precepts cannot be understood abstractly, apart from the experience of particular historical communities, the Christian pacifist argues, so it is futile to make context-independent distinctions between just and unjust wars. What matters is who is making the distinction and for what purposes.⁶ But the argument sometimes goes beyond this quite plausible insistence on the hermeneutical importance of context to assert the more extreme conclusion that a communal worldview can be understood only from within the community whose view it is. Christian nonviolence, its adherents sometimes argue, is not an abstract ethical theory that can be usefully contrasted with other theories; it is a set of convictions and practices that defines a community of believers. To comprehend these convictions and practices one must take part in them, and to do that one must be a member of the community of nonviolent Christians. Its principles are not fully intelligible to those who do not embrace its beliefs and way of life.

The fallacy in this argument is that it equivocates between different meanings of "understanding." It does not follow from the fact that belief is required for the understanding available to an insider that it is required for *any* understanding. Belief is merely an aspect of understanding. The religious historicist is in effect making the circular claim that the understanding one can achieve by faith can be achieved only by faith. The argument undermines itself: if understanding is impossible without belief, any effort to communicate with those who are not believers is pointless. The historicist argument implies that there can be no significant dialogue or understanding between authentic Christians and those outside this community, or, more generally, between those who are members of different moral and intellectual communities.

It is true that observation from afar, which is so often accompanied by ignorance, incomprehension, and hostility, can be an obstacle to interpretation. But emotional and intellectual involvement can blind as well as illu-

minate. To understand something may in part be to understand it “from the inside,” but understanding also means knowing what a thing is not, and this requires distance. Interpretation presumes the possibility of access by outsiders to the object of interpretation. This possibility is denied by the claim that only the believer can understand Christianity.

The alternative to historicist hermeneutics need not rest on the foundationalist premise that real understanding presupposes an objective standpoint. Such foundationalism is simplistic: you cannot have access to “facts” in the absence of interpretive devices.⁷ Our premise in this volume is that to understand a system of moral ideas requires neither a standpoint located wholly within that system, nor a single, indisputable standpoint that lies outside it. We can criticize one system using the ideas of another. We are members of many overlapping ethical communities, and our participation in each gives us critical distance on the ideas of the others. Michael Walzer, who shares the view that significant conversation between people shaped by different communal experiences is possible, moves toward the historicist position when he argues that the most effective moral criticism is the “connected criticism” of those inside a community’s moral system. Inter-communal criticism, Walzer fears, is apt to be abstract or rationalist, and for this reason is likely to lead to coercion rather than to dialogue and voluntary agreement.⁸ In other words, authentic dialogue is more likely within communities than between them. But to the extent that communities overlap and appropriate one another’s ideas, the force of this argument is diminished. And it is precisely because dialogue between those committed to different ideas is difficult that special effort is required to bring it about and to help it succeed.

It is inherent in dialogue not only that speakers will say different things but that they will speak in different idioms or voices. One of the challenges of dialogue is to listen to the manner in which others make their arguments and disclose their beliefs, assumptions, and commitments. Style and substance, one soon learns, are not easily disentangled. As the following chapters illustrate, the way a speaker argues his or her case is related to the history and conceptual content of the case argued.

John Finnis’s chapter on natural law, for example, presents a carefully organized structure of precepts and distinctions that draws upon a heritage of centuries of debate within a largely Christian context. But it is not the only interpretation of this heritage, and it may be fairly said that the coherence that the position achieves in Finnis’s hands is accomplished in part because his chapter articulates a single version of natural law, Catholic natural law, and indeed a particular version of this version, the so-called new natural law. David Mapel’s presentation of realist ethics is equally analytical, but it constructs an argument that departs in many ways from

the views of Machiavelli, Hobbes, Niebuhr, Morgenthau, and others who are often labeled “political realists.” Because realists characteristically think of themselves as making a fresh start rather than as reinterpreting a tradition, it may be argued that Mapel’s approach is entirely in keeping with the spirit of political realism. Realists, even more than natural lawyers, dismiss the authority of the past and assert an ethic as reasonable because it rests on premises that seem reasonable to them.

The other chapters also illustrate different ways of approaching the topic. Michael Walzer reports faithfully on a strand of Jewish thought little known to outsiders, though its principles differ markedly from those he has defended elsewhere.⁹ Bassam Tibi is more openly critical, examining Islam with the lens of a self-confessed internationalist. In doing so, he provides insight into an issue currently dividing the Islamic world. Jean Elshtain observes that the most striking feature of feminism regarding the ethics of war and peace is disagreement, and this disagreement is reflected in her own ambivalent stance as both an advocate and a critic of feminism. And Ted Koontz, who speaks as a Mennonite whose pacifist convictions are often treated as irrelevant by those who think it obvious that war is sometimes warranted, does so in an idiom, critical and passionate, that both reflects and protests this marginalization. The reactors, too, speak in a diversity of idioms.

Would it be better if these contributions were stylistically more uniform? Would that make the viewpoints presented more “comparable”? It seems unlikely. The chapters are not only representative accounts but also individual representations of the viewpoints they describe. They are the products of real voices in conversation, and what they say cannot be forced into the Procrustean bed of a common analytical scheme. The authors adopt different ways of dealing with the common questions we have asked them to discuss because the questions mean different things in different viewpoints. We need to take these different meanings seriously.

Because the patterns of ethical thought we have identified are in many ways significantly different entities, it sometimes seems best, in seeking to encompass them all in a single term, to speak of perspectives or viewpoints instead of traditions or systems. Feminism offers a recognizable approach to many issues, but nothing so unified and directive as a system of moral precepts. Political realism is a consistent viewpoint—an ethic of responsibility or of expediency, depending on how you judge it—but it is not a self-conscious tradition like rabbinic discourse or Catholic natural law, both of which display an impressive degree of coherence and continuity. Yet every viewpoint is to some extent an analytical construct resting on distinctions articulated through a process of abstraction rather than the mere description of particulars. And even description requires interpretive categories.

Ethical thinking, like other kinds of thinking, can be analyzed by a procedure of historical inquiry or philosophical abstraction into positions, discourses, schools, movements, paradigms, or modes of thought. Any identified viewpoint can be further dissected into increasingly particular arguments, strands, idioms, voices, etc., or combined with other viewpoints to generate a more inclusive framework of ideas. A tradition or perspective is an interpretive tool, a way of organizing experience. It is not a “thing,” an ontologically given object of perception, a natural kind. The idea that there is a fixed and objective roster of ethical viewpoints waiting to be correctly identified is absurd.

This is not to say that our choice of viewpoints for study is beyond criticism. But it has a rationale. We begin with the classic confrontation between natural law and political realism because the terms of debate have been set, in Western political discourse at least, by these perspectives. As suggested earlier, they reflect the poles of ethical thought, natural law tending toward the universal and deontological, political realism toward the particular and consequentialist.¹⁰ Against pacifism, both insist that there must be an ethic of war because wars may be forced upon us even though we wish to avoid them, and because ethical choices are unavoidable if we choose to fight. And in contrast to the messianic withdrawal of rabbinic Judaism and the messianic engagement of classical Islam, both natural law and political realism accept the existence of a plurality of states, recognizing that coexistence is inescapable and perhaps even desirable.

We might have captured the tension between political realism and natural law in other ways, perhaps by contrasting realism with what is sometimes called “the just war tradition,” a label that embraces a diversity of views holding that war is subject to moral constraints. We might have chosen, as an alternative to Catholic natural law, some other strand of Christian ethics or the Kantian version of natural law that is today embodied in many nonreligious theories of morality and human rights.¹¹ We might have examined an even more inclusive family of natural law arguments, including those of Grotius, Hobbes, Pufendorf, and Vattel.¹² Or we might have focused on the tradition of positive international law, especially the law of armed conflicts. But these viewpoints are, with the exception of Kantian ethics, less clearly distinguished from political realism than is the Catholic tradition of natural law in the thoroughly anticonsequentialist version articulated by John Finnis and his colleagues.¹³ The coherence of this interpretation, as well as its dependence on an ancient and fully developed literature, makes it an especially useful tool for exploring the tension between law-oriented (moral) and outcome-oriented (consequentialist) conceptions of war/peace ethics.

In Part Two of this book, we seek to expand the dialogue by bringing in the voices of Jewish and Islamic ethical thought. How does the classic de-

bate look from the standpoint of perspectives somewhat removed from this debate, yet clearly related to it? The dialogue becomes more difficult here, for Jewish and Islamic perspectives on war and peace are shaped by ideas, methods, and sources peculiar to these traditions. It is, for the scholar coming from a concern with Christian, Western, or secular ideas and issues, also inherently risky—if one attempts it at all, one may be chided for lacking expertise, reproached for not doing more, or accused of orientalism. These are risks we choose to run, trusting that others will correct our mistakes.

The third part of this book adds two critical voices, those of feminism and Christian pacifism, that have for the most part been outside the mainstream Western debate on war and peace but whose moral significance is undeniable. Like Judaism and Islam, these perspectives have proven hard to incorporate into the debate between realism and natural law, for they, too, seem to challenge the assumptions of that debate. Our effort to come to terms with this challenge has been illuminating for all sides, and we hope it will prove illuminating for the reader.

It may be that we should have paid more attention to what Ted Koontz in his chapter calls the “abolitionist” perspective of Penn, Saint-Pierre, Kant, the founders of the League of Nations and the United Nations, and other advocates of global federation. The main concern of this tradition is not the ethics of war but the construction of a just international order in which law will substitute for war. For that reason, the tradition takes us away from our concern with how states and individuals should deal with war when it cannot be avoided. For better or worse, our focus in this book is on how the choice to fight or not to fight should be made, not on how a world might be created in which such choices are no longer required.¹⁴

The comparative overviews that make up the final section of this book compare and contrast the presented viewpoints in relation to the questions each author was asked to keep in mind while preparing his or her chapter. Many of these questions reflect the “just war” categories of the classic debate between political realism and natural law. As the chapters to follow illustrate, those committed to other viewpoints will often ask different questions. One of the things we want to discover is where these viewpoints challenge not only the familiar answers to the classic questions but the questions themselves. We also want to learn something about differences within each viewpoint—differences the exchanges between the presenters and reactors for each perspective are designed to illuminate. What emerges is a picture of continuing debate, both within and between the viewpoints represented here. Moral traditions are often seen as doctrinal relics, the hardened deposits of past debates. As the following chapters make clear, they are also a resource for future debates and moral choices—choices and debates that will, in turn, reshape our multivocal heritage.

NOTES

1. Chris Brown, *International Relations Theory: New Normative Approaches* (New York: Columbia University Press, 1992).

2. Martin Wight, *International Theory: The Three Traditions* (Leicester: Leicester University Press, 1991), and Michael Donelan, *Elements of International Political Theory* (Oxford: Clarendon Press, 1990). Wight's three traditions are the Machiavellian (realism), the Grotian (rationalism), and the Kantian (revolutionism), whereas Donelan identifies five views: natural law, realism, fideism, rationalism, and historicism.

3. See Terry Nardin and David R. Mapel, eds., *Traditions of International Ethics* (Cambridge: Cambridge University Press, 1992).

4. Symposium on the Ownership and Distribution of the World's Natural Resources, *Journal of Value Inquiry* 23 (1989), 169–258; Brian Barry and Robert E. Goodin, eds., *Free Movement: Ethical Issues in the Transnational Migration of People and of Money* (University Park, PA: Pennsylvania State University Press, 1992); Symposium on Capitalism, Socialism, or Mixed Economy, *Ethics* 102 (1992), 447–511; and Chris Brown, ed., *Political Restructuring in Europe: Ethical Perspectives* (London: Routledge, 1994).

5. Thomas L. Pangle, "The Moral Basis of National Security: Four Historical Perspectives," in Klaus Knorr, ed., *Historical Dimensions of National Security Problems* (Lawrence: University Press of Kansas, 1976), 307–72; Reiner Steinweg, ed., *Der Gerechte Krieg: Christentum, Islam, Marxismus* (Frankfurt-am-Main: Suhrkamp, 1980); James Turner Johnson, *The Quest for Peace: Three Moral Traditions in Western Cultural History* (Princeton: Princeton University Press, 1987); James Turner Johnson and John Kelsay, eds., *Cross, Crescent, and Sword: The Justification and Limitation of War in Western and Islamic Tradition* (New York: Greenwood Press, 1990); John Kelsay and James Turner Johnson, eds., *Just War and Jihad: Historical and Theoretical Perspectives on War and Peace in Western and Islamic Traditions* (New York: Greenwood Press, 1991).

6. Stanley Hauerwas, "Whose Justice? Which Peace?" in David E. DeCosse, ed., *But Was It Just?* (New York: Bantam Doubleday Dell, 1992), 84. The hermeneutical issues raised by Hauerwas in this article and other writings are discussed at length by Ted Koontz and Michael Cartwright in Chapters 9 and 10 below.

7. A point emphasized in the context of war/peace ethics by Richard B. Miller, *Interpretations of Conflict: Ethics, Pacifism, and the Just-War Tradition* (Chicago: University of Chicago Press, 1991), 241, and in Chapter 14 below.

8. Walzer, *Interpretation and Social Criticism* (Cambridge, MA: Harvard University Press, 1987). In the absence of a "thick" set of shared values, members of different communities must fall back on articulating prohibitions rather than positive duties, so this "thinner criticism" is about as much as one can hope for in international ethics. Walzer develops this line of thinking in *Thick and Thin: Moral Argument at Home and Abroad* (Notre Dame, IN: University of Notre Dame Press, 1994).

9. Michael Walzer, *Just and Unjust Wars: A Moral Argument with Historical Illustrations*, 2d ed. (New York: Basic Books, 1992).

10. It is worth noting that although individual realists are often particularist, concerned with the security of their own states, political realism as an abstract doctrine makes the universal claim that every state must be concerned with its own security.

11. Alan Donagan makes an effort to sketch the outlines of a “common morality” along Kantian lines in *The Theory of Morality* (Chicago: University of Chicago Press, 1977). See also Gene Outka and John P. Reeder, Jr., eds., *Prospects for a Common Morality* (Princeton: Princeton University Press, 1993).

12. On what is sometimes called the “Grotian tradition,” see Hedley Bull, “The Grotian Conception of International Society,” in Herbert Butterfield and Martin Wight, eds., *Diplomatic Investigations: Essays in the Theory of International Politics* (Cambridge, MA: Harvard University Press, 1968), 51–73; also Hedley Bull, Benedict Kingsbury, and Adam Roberts, eds., *Hugo Grotius and International Relations* (Oxford: Clarendon Press, 1990).

13. See John Finnis, *Natural Law and Natural Rights* (Oxford: Clarendon Press, 1980); *Fundamentals of Ethics* (Washington, DC: Georgetown University Press, 1983); *Moral Absolutes: Tradition, Revision, and Truth* (Washington, DC: Catholic University of America Press, 1991); and, with Joseph M. Boyle, Jr. and Germain Grisez, *Nuclear Deterrence, Morality and Realism* (Oxford: Clarendon Press, 1987). The “natural law” theories of Hobbes, Spinoza, and Rousseau contain many realist arguments, and have been understood as realist by some interpreters.

14. The place of law and institutions in the international order is the subject of another volume in the Ethikon Series in Comparative Ethics, David R. Mapel and Terry Nardin, eds., *International Society: Diverse Ethical Perspectives* (Princeton: Princeton University Press, 1998).